

23NWCV01388 23NWCV01388

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-07

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Case Number: 23NWCV01388 Hearing Date: August 7, 2026 Dept: P

Garcia v. Mejia, et al., 23NWCV01388

This personal injury action was filed on May 4, 2023. Trial is scheduled to begin on August 19, 2026. Plaintiff Brian Garcia (Plaintiff) now applies ex parte to continue the trial date to November 30 or December 7, 2026, due to unavailability of Plaintiff's counsel and Plaintiff's experts. Plaintiff's counsel states that he will be engaged in another trial in which continuances are not possible.

In opposition, Defendants Art Gautreau, Inc. and Israel Mejia (Defendants) state that they agree to a November 30, 2026 trial date assuming that Plaintiff is able to depose Defendants' experts by the continued trial date. Defendants seek Plaintiff's confirmation in this regard.

Plaintiff's ex parte application to continue the trial date is GRANTED pursuant to California Rules of Court, rule 3.1332(c)(1), (3) based on the unavailability of Plaintiff's counsel and experts. The Court additionally finds Defendants' request reasonable—for Plaintiff to confirm whether he intends to depose Defendants' experts in this time. Plaintiff may address this at the hearing. The Court will confer with the parties to select new trial and FSC dates. Discovery and motion cut-offs remain closed except as provided in the July 31, 2026 Order. Moving party to give notice.